

Court No. - 39

Case :- WRIT - C No. - 3233 of 2025

Petitioner :- Gupreet Singh

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Mohd. Kamar Shah Alam

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Siddhartha Varma,J.

Hon'ble Ms. Nand Prabha Shukla,J.

1. Heard learned counsel for the petitioner, learned Chief Standing Counsel for the State and perused the record.

2. Present petition has been filed in the nature of certiorari quashing the 03.12.2024 issued by respondent No. 2 worth of Rs. 9,96,769/- interest and recovery charges and to command the respondent authority to decide the application/objection dated 10.01.2025.

3. This writ petition has been filed for quashing of the recovery certificate dated 03.12.2024 which has sought to recover Rs. 9,96,769/- with interest from the petitioner. Learned counsel for the Electricity Department has stated that the recovery was being done on the basis of various bills which had gone unpaid by the petitioner. To substantiate his argument, he has pointed out to the various bills which have been attached along with the instructions which have been handed over to the Court.

4. Under such circumstances, we are of the view that the petitioner may approach the relevant authority under Clause 6.5 of the U.P. Electricity Supply Code, 2005 and if he approaches the relevant authority within a period of ten days from today then the application of the petitioner shall be decided within a period of two months thereafter.

5. For a period of three months or till the application is decided or whichever is earlier, no coercive action shall be taken against the petitioner.

6. Needless to mention, learned counsel for the Electricity Department may supply the copy of the instructions to the counsel for the petitioner.

7. With these observations, the writ petition is **disposed of**.

Order Date :- 5.2.2025

Shivani

(Nand Prabha Shukla,J.) (Siddhartha Varma,J.)